

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

Date Filed: November 2, 2020

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STEVEN CATO and CARMEL CATO,

Plaintiffs,

Plaintiffs designates
KINGS COUNTY
as the place of trial

- against -

The basis of venue is the county
in which the cause of action arose
CPLR Sec. 505(b)

SUMMONS

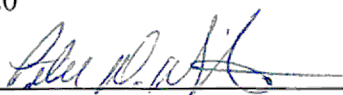
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, STEPHAN NOEL a/k/a
POLICE OFFICER STEPHAN NOEL, JOHN
BRENNAN a/k/a POLICE OFFICER JOHN
BRENNAN, COLIN MICHAEL a/k/a POLICE
OFFICER COLIN MICHAEL, and JOHN DOE
and JANE DOE (said names being fictitious and
unknown and who are/were police officers
of the 63rd Precinct),

Defendants.

-----X
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a
notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of
the day of service (or within 30 days after the service is complete if this summons is not personally delivered to
you within the State of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Brooklyn, N.Y.
November 2, 2020


BY: PETER D. DiBONA, ESQ.

PETER D. DiBONA, P.C.
Attorneys for Plaintiffs,
STEVEN CATO and CARMEL CATO
436 Bay Ridge Parkway
Brooklyn, New York 11209
(718) 492-4455

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK: 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT: 100 Church Street, New York, NY 10007

STEVEN NOEL a/k/a POLICE OFFICER

STEPHAN NOEL: 63rd Precinct, 1844 Brooklyn Ave., B'klyn, NY 11210

JOHN BRENNAN a/k/a POLICE

OFFICER JOHN BRENNAN: 63rd Precinct, 1844 Brooklyn Ave., B'klyn, NY 11210

COLIN MICHAEL a/k/a POLICE

OFFICER COLIN MICHAEL: 63rd Precinct, 1844 Brooklyn Ave., B'klyn, NY 11210

JOHN DOE and JANE DOE

(said names being fictitious and
unknown and who are/were police officers
of the 63rd Precinct):

63rd Precinct, 1844 Brooklyn Ave., B'klyn, NY 11210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STEVEN CATO and CARMEL CATO,

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, STEPHAN NOEL a/k/a
POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN
a/k/a POLICE OFFICER JOHN BRENNAN, COLIN
MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL,
and JOHN DOE and JANE DOE (said names being fictitious
and unknown and who are/were police officers of the
63rd Precinct),

Index #

Defendants.
-----X

Plaintiffs, by and through their attorneys, Law Offices of Peter D. DiBona, P.C.,
complaining of the defendants herein, allege the following upon information and
belief:

1. That plaintiffs are residents of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That a notice of claim setting forth the time and place of the occurrence and

the nature of the claims and injuries of the plaintiff, STEVEN CATO, was duly served on the defendant, THE CITY OF NEW YORK, with the Comptroller of the City of New York, on June 6, 2019, within ninety (90) days after the occurrence complained of herein.

5. That more than thirty (30) days have elapsed since the filing of the notice of claim of the plaintiff, STEVEN CATO, and the defendant, THE CITY OF NEW YORK, has failed and refused to make any adjustment of said claim.

6. That on or about November 20, 2019, plaintiff, STEVEN CATO, appeared and testified at a statutory hearing conducted by the defendant, THE CITY OF NEW YORK, and more than thirty (30) days have elapsed and the defendant, THE CITY OF NEW YORK, has failed and refused to make any adjustment of said claim.

7. That a notice of claim setting forth the time and place of the occurrence and the nature of the claims and damages sustained by the plaintiff, CARMEL CATO, was duly served on the defendant, THE CITY OF NEW YORK, with the Comptroller of the City of New York, on June 7, 2019, within ninety (90) days after the occurrence complained of herein.

8. That more than thirty (30) days have elapsed since the filing of the notice of claim of the plaintiff, CARMEL CATO, and the defendant, THE CITY OF NEW YORK, has failed and refused to make any adjustment of said claim.

9. That at all times hereinafter mentioned defendant, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

10. That defendant, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, precinct, resigned from the NEW YORK CITY POLICE DEPARTMENT.

11. That at all times hereinafter mentioned defendant, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

12. That defendant, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, resigned from the NEW YORK CITY POLICE DEPARTMENT.

13. That at all times hereinafter mentioned defendant, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

14. That defendant, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, resigned from NEW YORK CITY POLICE DEPARTMENT.

15. That on March 9, 2019, defendants, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, and COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, were assigned to the NYPD 63rd precinct.

16. That at all times hereinafter mentioned defendants, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, and JOHN and JANE DOE (said names being fictitious and unknown and who are/were police officers of the 63rd precinct), were acting within the scope and course

of their employment with the New York Police Department and under color of State Law.

17. That at all times hereinafter mentioned were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

18. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

19. On or about March 9, 2019, at approximately 10:30 p.m., plaintiff, STEVEN CATO, was lawfully in the vicinity of 4716 Avenue M, Brooklyn, New York.

20. That plaintiff, STEVEN CATO, was watching a music video being filmed in the vicinity of 4716 Avenue M, Brooklyn, New York.

21. While in the vicinity of the aforementioned address, the defendants followed and/or chased plaintiff, STEVEN CATO, inside his home without cause and without justification.

22. That plaintiff, STEVEN CATO, was followed and/or chased inside his home located at 4716 Avenue M, Brooklyn, New York, by defendants where the acts complained of herein took place.

23. That plaintiff, STEVEN CATO, without cause or provocation, was subjected to excessive force and restraint, assaulted, battered, handcuffed, arrested, and transported to a hospital, and later the 63rd precinct where he was put in a holding cell.

24. After numerous court appearances, all charges were dismissed against the plaintiff, STEVEN CATO.

25. That the individual defendants, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, and JOHN and JANE DOE (said names being fictitious and unknown and who are/were police officers of the 63rd precinct), under color of state law, subjected plaintiff, STEVEN CATO, to the foregoing acts and omissions without due process of the law, thereby depriving plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF, STEVEN CATO, FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE FOURTH FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST AND IMPRISONMENT

26. Plaintiff, STEVEN CATO, repeats and realleges each and every allegation contained above as though set forth at length herein.

27. That on or about March 9, 2019, at approximately 10:30 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to, defendants, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, and JOHN and JANE DOE (said names being fictitious and unknown and who are/were police officers of the 63rd precinct), wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

28. That on or about March 9, 2019, at approximately 10:30 p.m., defendants, STEPHAN NOEL a/k/a POLICE OFFICER STEPHAN NOEL, JOHN BRENNAN a/k/a POLICE OFFICER JOHN BRENNAN, COLIN MICHAEL a/k/a POLICE OFFICER COLIN MICHAEL, and JOHN and JANE DOE (said names being fictitious and unknown and who are/were police officers of the 63rd precinct), jointly and severally in their capacity as police officers, wrongfully stopped, assaulted, battered, handcuffed, and seized the plaintiff about his person, causing him physical pain and mental suffering. At no time did defendants have legal cause to stop, handcuff, seize or touch plaintiff, nor did plaintiff consent to this illegal touching nor was or privileged by law.

29. That on or about March 9, 2019, defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested plaintiff, restrained him and his liberty.

30. That the aforesaid arrest, detention, and imprisonment continued at the 63rd

precinct.

31. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the defendant police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

32. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

33. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

34. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

35. As a result of the aforementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

36. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to

plaintiff's rights.

37. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

38. The aforesaid described constitutional violations are all actionable under and pursuant to 42 U.S.C. 1983, 1988, and New York State law.

SECOND CAUSE OF ACTION FOR VIOLATION OF THE RIGHTS OF THE
PLAINTIFF, STEVEN CATO, UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION
AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

39. Plaintiff, STEVEN CATO, repeats and realleges each and every allegation contained in the foregoing as if more fully set forth at length herein.

40. Upon information and belief, on or about March 9, 2019 and from that time until the dismissal of charges, which was favorable termination for the accused, defendants deliberately and maliciously prosecuted plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

41. The commencement of these criminal proceedings was malicious and began

with malice and without probable cause, so that the proceedings could succeed by the defendants.

42. As a result of the aforementioned actions, including the initiation of the criminal prosecution of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

43. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

44. As a result of the aforementioned actions, defendants deprived plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

45. The aforementioned conduct by defendants was motivated and instigated by other than lawful reasons and without probable cause.

46. The aforementioned acts of defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

47. Plaintiff has suffered humiliation, mental anguish, indignity, and frustration of an unjust criminal prosecution.

48. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. 1983, 1988, and under New York State Law.

THIRD CAUSE OF ACTION FOR VIOLATION OF THE RIGHTS OF THE
PLAINTIFF, STEVEN CATO, UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION
AND NEW YORK STATE LAW PREDICATED UPON ASSAULT BATTERY.
AND THE USE OF EXCESSIVE FORCE UPON PLAINTIFF

49. Plaintiff, STEVEN CATO, repeats and realleges each and every allegation contained in foregoing as if more fully set forth at length herein.

50. That on or about March 9, 2019, at approximately 10:30 p.m., defendants, jointly and severally in their capacity as a police officers, wrongfully arrested, stopped, handcuffed, assaulted, battered, victimized and seized the plaintiff about his person, causing him physical pain and mental suffering. At no time did defendants have legal cause to enter, stop, handcuff, seize or touch plaintiff, nor did plaintiff consent to this illegal touching nor was or privileged by law.

51. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

52. As a result of the aforementioned actions, defendants deprived plaintiff of his right against the use of excessive force against his person secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

53. The aforementioned acts of defendants were intentional, willful, and malicious and performed with a reckless disregard for and deliberate indifference to plaintiff's rights.

54. That by reason of the assault, battery, and excessive force inflicted upon the

plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so assaulted, battered, victimized and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

55. The aforesaid constitutional violations are all actionable under and pursuant to 42 U.S.C. 1983, 1988 and under New York State law.

FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY UNDER
RESPONDEAT SUPERIOR, NEGLIGENCE, TRAINING, SUPERVISION,
AND A MONELL CLAIM PURSUANT TO 42 U.S.C 1983

56. Plaintiffs repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

57. All of the acts and omissions by the individual defendants, described herein were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

58. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

59. Defendants arrested, detained, and assaulted plaintiff, STEVEN CATO, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge

that said arrest and detention would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

60. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

61. On or about March 9, 2019, defendants did stop, seize, search, assault and commit a battery and grab the persons of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner.

62. The plaintiff was falsely arrested, unlawfully detained, maliciously prosecuted, and suffered great injury without the defendants possessing probable cause to do so and in furthering such unlawful policies such as stop, question, and frisk.

63. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from the use of excessive force during the arrest process.
- f. Freedom from unlawful imprisonment.
- g. Freedom from malicious prosecution.

64. Defendants subjected plaintiffs to such deprivations, either in a malicious or reckless disregard of the plaintiffs' rights.

65. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

66. The direct and proximate results of the defendants' acts are that plaintiff, STEVEN CATO, suffered severe permanent injuries of a psychological nature, and was forced to endure pain and suffering to his detriment.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE DEFENDANTS
ON BEHALF OF PLAINTIFF, CARMEL CATO

67. Plaintiff, CARMEL CATO, repeats and realleges each and every allegation contained in the foregoing paragraphs of the complaint as if more fully set forth at length herein.

68. That at all times hereinafter mentioned, plaintiff, CARMEL CATO, was the owner of the premises located at 4716 Avenue M, Brooklyn, New York.

69. That defendants in the unlawful pursuit of the plaintiff, STEVEN CATO, forcefully entered the premises located at 4716 Avenue M, Brooklyn, New York without consent or permission of the plaintiff, CARMEL CATO.

70. That defendants caused property damage to the premises located at 4716 Avenue M, Brooklyn, New York when they entered the aforesaid premises while

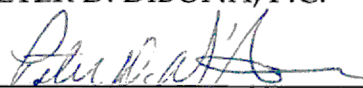
pursuing the plaintiff, STEVEN CATO.

71. That plaintiff, CARMEL CATO, sustained property damage to his home located at 4716 Avenue M, Brooklyn, New York in the approximate sum of Eleven Thousand (\$11,000.00) Dollars due to the intentional and negligent acts of the defendants in entering the aforesaid premises.

WHEREFORE, plaintiff, STEVEN CATO, demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for pain and suffering, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction of this matter, and plaintiffs further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, and plaintiff, CARMEL CATO, demands judgment against the defendants for property damage to his premises in the sum of Eleven Thousand (\$11,000.00) Dollars, together with attorney's fees, costs and disbursements of this action.

Dated: New York, New York
October 30, 2020

Law Offices of
PETER D. DiBONA, P.C.



By: Peter D. DiBona, Esq.
Attorneys for Plaintiffs
436 Bay Ridge Parkway
Brooklyn, New York 11209
(718) 492-4455

Index No.:

Year 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiffs,

-against-

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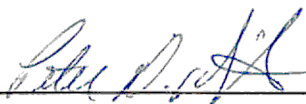
Defendants.

COMPLAINT

PETER D. DiBONA, P.C.
Attorneys for Plaintiffs
Office and Post Office Address
436 Bay Ridge Parkway
Brooklyn, New York 11209
(718) 492-4455

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: October 30, 2020


By: PETER D. DiBONA, ESQ.

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for _____
